

22STCV11228 22STCV11228

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Case Number: 22STCV11228 Hearing Date: June 26, 2026 Dept: SED

DANIEL GARCIA V.

CITY OF SOUTH GATE, ET AL.

CASE NO.: 22STCV11228

HEARING: 06/26/2026 @

9:30 a.m.

#14

TENTATIVE ORDER

Plaintiff Daniel Garcia's

motion to continue trial is DENIED.

Moving party to give notice.

Plaintiff Daniel Garcia (Plaintiff)

moves to continue the trial in the instant case as well as the final status conference, motion to bifurcate, motion for injunction, and for discovery to be reopened.

Background

On April 1, 2022, Plaintiff filed

this action against Defendants City of South Gate (South Gate), City of Los Angeles, County of Los Angeles, AML Trust, Armando Mendez, and Does 1 through 25, for general negligence and premises liability. The premise liability claim included counts

for negligence, willful failure to warn, dangerous condition of public property, and allegations about other defendants.

Trial is currently set for July 15, 2026.

Procedural Concerns

Plaintiff's motion is procedurally deficient under California Rules of Court, rule 3.1113. Rule 3.1113(d) provides that, except in motions for summary judgment or summary adjudication, an opening memorandum may not exceed 15 pages. Here, Plaintiff's memorandum of points and authorities spans 17 pages. Plaintiff did not seek leave under rule 3.1113(e) to file an oversized memorandum. Rule 3.1113(f) further requires that any memorandum exceeding 10 pages include a table of contents and table of authorities. Plaintiff's memorandum contains neither.

In addition, several pages of the memorandum consist almost entirely of reduced reproductions of deposition excerpts, photographs, demonstrative exhibits, and other discovery materials embedded within the memorandum itself. These reproductions are largely illegible due to their reduced size and are not a substitute for legal argument or properly submitted evidentiary exhibits. To the extent Plaintiff seeks to rely on such materials, they should have been presented through supporting declarations and exhibits rather than incorporated into the memorandum.

Under rule 3.1113(g), "[a] memorandum that exceeds the page limits of these rules must be filed and considered in the same manner as a late-filed paper."

Accordingly, Plaintiff's memorandum is procedurally improper. Nevertheless, because trial is scheduled shortly after the hearing and continuing the matter to permit Plaintiff to file a compliant memorandum is impracticable, the Court, in the exercise of its discretion, will consider the motion. However, the Court limits its consideration to the first 15 pages of Plaintiff's memorandum and does not consider the reduced reproductions of discovery materials embedded within the memorandum to the extent they are illegible or offered in lieu of legal argument.

Legal Standard

Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. (Cal. Rules of Court, rule 3.1332(c).) The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. (Ibid.) Good cause includes the unavailability of an essential lay or expert witness, party, or trial counsel; “the substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;” the addition of a new party; a party’s excused inability to obtain evidence; or a significant, unanticipated change in the case. (Ibid.)

Furthermore, the court must consider all the facts and circumstances of the case, which may include:

- (1) The proximity of the trial date;
- (2) Whether there was any previous continuance, extension of time, or delay of trial due to any party;
- (3) The length of the continuance requested;
- (4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;
- (5) The prejudice that parties or witnesses will suffer as a result of the continuance;
- (6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay;
- (7) The court’s

calendar and the impact of granting a continuance on other pending trials;

(8) Whether trial

counsel is engaged in another trial;

(9) Whether all

parties have stipulated to a continuance;

(10) Whether the

interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and

(11) Any other fact

or circumstance relevant to the fair determination of the motion or application.

(Cal. Rules of Court, rule 3.1332(d)(1)-(11).)

Analysis

Plaintiff moves to continue the trial in the instant case, continue the final status conference and the hearings on the motion to bifurcate and motion for injunction, and reopen discovery.

In opposition, South Gate argues that Plaintiff has failed to establish good cause for a trial continuance and instead seeks relief based on delays of his own making. (Opp., p. 6-8.) South Gate contends that Plaintiff has repeatedly attempted to reopen fact discovery and extend deadlines through two previously denied ex parte applications, a motion to compel, and the present motion, despite having had ample opportunity to complete discovery. (Ibid.) South Gate further asserts that Plaintiff failed to timely depose his own treating physicians and known fact witnesses before the fact discovery cutoff and now seeks to reopen discovery to remedy counsel's lack of diligence. (Ibid.)

The Court finds that Plaintiff has not made the affirmative showing of good cause required by California Rules of Court, rule 3.1332(c).

Here, Plaintiff's motion

identifies several discovery-related issues that Plaintiff contends justify a continuance. Specifically, Plaintiff asserts that Dr. Corey Lieber failed to appear for his scheduled deposition, that Defendant did not produce Arturo Cervantes and Eric Mirzaian for deposition before the discovery cutoff, that Defendant's retained expert, Henricus Jansen, produced photographs, scans, calculations, demonstrative exhibits, and other materials during his deposition that Plaintiff contends should have been disclosed earlier, and that Defendant declined to produce Abel Montanez for deposition on the ground that fact discovery had already closed. Plaintiff argues that these circumstances have impaired his ability to complete discovery, prepare rebuttal evidence, and effectively cross-examine Defendant's witnesses at trial.

These circumstances, however, do not constitute an affirmative showing of good cause under rule 3.1332(c). Although Plaintiff identifies various discovery disputes, including the production of additional materials during expert discovery and disputes concerning certain depositions, Plaintiff does not demonstrate that these issues resulted from an excused inability to obtain essential evidence despite the exercise of reasonable diligence.

Moreover, although Plaintiff repeatedly relies on the standards governing ex parte relief under California Rules of Court, rule 3.1202(c), including assertions of "immediate danger," "irreparable harm," and due process concerns, the issue before the Court is whether Plaintiff has demonstrated good cause for a continuance under rule 3.1332. Plaintiff's reliance on the standard governing ex parte relief does not satisfy the affirmative showing required by rule 3.1332.

The factors set forth in rule 3.1332(d) likewise do not support a continuance. The availability of pending discovery motions, evidentiary objections, and motions in limine demonstrates that alternative means exist to address Plaintiff's concerns without continuing the trial. (Cal. Rules of Court, rule 3.1332(d)(4).) In addition, given the proximity of the July 15, 2026 trial date, Plaintiff has not demonstrated that the interests of justice are better served by delaying trial than by proceeding as scheduled. Nor has Plaintiff established that a continuance is the only practical means of addressing the issues identified in the motion.

Accordingly, Plaintiff has failed to establish good cause to continue the trial.

Conclusion

Based on the foregoing, Plaintiff

Daniel Garcia's motion to continue the trial, continue the final status conference, continue the hearings on the motion to bifurcate and motion for injunction, and reopen fact discovery is DENIED in its entirety.